

Railway Passengers (Cancellation Of Ticket And Refund Of Fare) Rules, 1998

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Railway Passengers (Cancellation Of Ticket And Refund Of Fare) Rules, 1998

UNION OF INDIA

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Railway Passengers (Cancellation Of Ticket And Refund Of Fare) Rules, 1998

Rule RAILWAY-PASSENGERS-CANCELLATION-OF-TICKET-AND-REFUND-OF-FARE-RULES-1998 of 1998

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Railway Passengers (Cancellation Of Ticket And Refund Of Fare) Rules, 1998

Published vide Notification Gazette of India, Extra, Part 2, Section 3(i), dated 24.7.1998.

1565.

G.S.R. 410(E), dated 24th July, 1998.- In exercise of the powers conferred by sub-section (1), read with clause (b) of sub-section (2), of Section 60 of the Railways Act, 1989 (

24 of 1989

), and in supersession of Railway Passengers (Cancellation of Tickets and Refund of Fares) Rules, 1990 except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.-

(1)

These rules may be called Railway Passengers (Cancellation of Ticket and Refund of Fare) Rules, 1998.

(2)

They shall come into force on the first day of October, 1998.

2.

Definitions.-

In these rules, unless the context otherwise requires

(a)

"Clerkage" means a charge levied by a railway administration for the clerical work rendered by it in the refund of fares;

(b)

"Destination station" means the station for which the ticket has been issued;

(c)

"RAC ticket" means a ticket on which a seat has been reserved against requisition for a berth and a berth may be subsequently provided against cancellation, if any;

(d)

"Fare" includes basic fare, supplementary charge on superfast trains and reservation fee;

(e)

"Reserved ticket" means a journey ticket on which a berth or seat has been reserved;

(f)

"Reservation fee" means the charge, in addition to the fare, levied by the Railway administration for the reservation of a berth or seat;

(g)

"Station" means a railway station and includes other reservation offices or booking offices in the same city;

(h)

"Station master" means a railway employee, by whatever name called having overall charge of a railway station and includes any other railway employee authorised to grant refund of fare at a Station;

(i)

"Ticket" means a single journey ticket or any of a return ticket but does not include a season ticket, an Indrail Pass ticket or a special ticket for a reserved carriage or a tourist car or saloon, or a special train.

(i)

[(j) "ARP" means advance reservation period upto which a reserved ticket can be booked for a future journey date;

(ii)

(k)

"confirmed ticket" means a ticket on which a seat or berth has been reserved;

(iii)

(l)

"TDR" means ticket deposit receipt issued to the passengers in lieu of the surrendered ticket, at the station where the ticket has been surrendered by the passenger;

(iv)

(m)

"tatkal ticket" means a ticket with shorter advance reservation period, issued to meet the requirements of those passengers who have to travel at short notice;

(v)

(n)

"waitlisted ticket" means a ticket on which no berth or seat has been allotted.]

3.

Station master to refund fares.-

(1)

Subject to the other provisions of these rules, every refund of fare on unused unreserved ticket shall, when such ticket

is presented for refund of fare to the station master of ticket issuing station be granted by such station master after verifying the genuineness of the ticket from the record of the station.

(2)

Subject to the other provisions of these rules, every refund of fare on reserved tickets, RAC tickets and wait-listed tickets shall, when such tickets are presented for refund of fare to the station master of ticket issuing station, be granted within the time limits prescribed in these rules, by such station master after verifying the genuineness of the tickets through computer or from the record of the station :

Provided that.-(a) in case tickets which were issued for travel from a station other than the ticket issuing station, refund of fare shall be admissible at-

(i)

the ticket issuing station, if the ticket is surrendered before the scheduled departure of the train from the station from where the ticket is valid for travel; and

(ii)

the journey commencing station, if the ticket is surrendered within the time limits prescribed in these rules, and

(b)

refund of fare may also be granted by the station master of a station other than the ticket issuing station and journey commencing station subject to the conditions that

(i)

the ticket is surrendered for refund of fare during working hours of the reservation office and before the preparation of reservation chart, of the concerned train, for the station from where the ticket is valid; and

(ii)

the genuineness of the ticket and its particulars are verifiable at the refund granting station through computer or from record of the station.

[4. Levy of clerkage- Subject to other provisions of these rules, station master shall levy a clerkage charge per passenger for cancellation of unreserved, wait-listed and RAC tickets at the rate of rupees fifteen for second class (unreserved) and rupees thirty for second class (reserved) and other classes.]

[Substituted by Notification No.G.S.R. 362(E) dated 6.6.2013 (w.e.f. 24.7.1998)]

[5. Unused tickets on which no reservation has been made. - If a ticket on which no reservation of a seat or berth has been made is presented to the station master for cancellation, refund of fare shall be made on every such ticket after deducting the clerkage-

(i)

the ticket is presented for cancellation within three hours of issue of ticket;

(ii)

in case of tickets issued in advance, the ticket is presented upto 2400 hours of the day preceding the day of journey.]

[6. Unused tickets on which reservation has been made - 1. Subject to the provisions of these rules, if a ticket on which reservation of a seat or berth has been made is presented by the passenger or his agent to a station master for cancellation, refund of fare shall be made after deducting cancellation charges from the fare as follows: -

(a)

if the ticket is presented for cancellation more than forty eight hours in advance of the scheduled departure of the train, a minimum per passenger cancellation charge shall be deducted at the flat rate of rupees one hundred and twenty for air conditioned first class/executive class, rupees one hundred for airconditioned-II tier/first class, rupees ninety for airconditioned III-tier/3 economy/airconditioned chair car, rupees sixty for sleeper class and rupees thirty for second class.

(b)

if the ticket is presented for cancellation between forty eight hours and upto six hours before the scheduled departure of the train, cancellation charge shall be twenty five per cent of the fare subject to a minimum of the cancellation charge referred to in clause (a);

(c)

if the ticket is presented for cancellation within six hours before the scheduled departure of the train and upto two hours after the actual departure of the train irrespective of distance, the cancellation charge shall be fifty per cent. of the fare

subject to a minimum of the cancellation charge referred to in clause (a); and

(d)

the passenger may get the ticket cancelled from any Passenger Reservation System (PRS) counters or the designated current counters:

Provided that for the night trains leaving between 21.00 hours and 06.00 hours (actual departure), refund shall be admissible at the station within first two hours after the opening of reservation office, in case no current counters are available at the station originating the journey;

(2)

No refund shall be granted on the reserved ticket if it is surrendered for cancellation after two hours of the actual departure of the train.

(3)

In case, on a party ticket or a family ticket issued for travel of more than one person, some persons have confirmed reservation and others are on waiting list, full refund of fare, less clerkage, shall be admissible for confirmed passengers also provided that the entire ticket is surrendered for cancellation within six hours before the scheduled departure of the train and upto two hours after actual departure of the train.]

[7. Unused waitlisted or RAC tickets or waitlisted - (1) If a waitlisted ticket or RAC ticket is presented for cancellation, refund of fare shall be made after deducting the clerkage in the following manner, namely:-

(i)

the ticket is presented for cancellation upto three hours after the actual departure of the train irrespective of the distance;

(ii)

the passenger may get the tickets cancelled from any Passenger Reservation System (PRS) counters or the designated current counters;

(iii)

no refund of fare shall be granted on RAC ticket or waitlisted ticket after three hours of the actual departure of the train.

(2)

In case no current counters are available at the station originating the journey for night trains leaving between 21.00 hours and 06.00 hours (actual departure), refund of fare shall be admissible at the station within first two hours after the opening of reservation office.

(3)

In remote and hill areas as identified by the Zonal Railway with the prior approval of the General Manager and printed in the time table, for night trains leaving between 19.00 hours and 06.00 hours (actual departure) refund shall be admissible at the station within first two hours after the opening of reservation or booking office, in case there is no reservation counters or booking office or current counters available in that area.

(4)

Where confirmed reservation has been provided to RAC or waitlisted ticket holder at any time upto the final preparation of reservation chart, such ticket shall be treated as a reserved ticket and cancellation charge shall be payable in accordance with rule 6.

7A.

Cancellation of e-tickets - (1) The e-ticket may be booked and cancelled through internet and the refund of fare shall be credited to the customer's account after deducting the charges applicable.

(2)

In case of a confirmed e-ticket, refund of fare shall be granted in accordance with rule 6.

(3)

In case of RAC e-ticket, refund of fare shall be granted in accordance with rule 7.

(4)

In case of the waitlisted e-ticket on which status of all the passengers is on waiting list even after preparation of reservation charts, names of all such passengers booked on that Passenger Name Record (PNR) shall be dropped from the reservation chart and refund of fare shall be credited to the customer's account after deducting the clerkage.

(5)

In case on a party e-ticket or a family e-ticket issued for travel of more than one person, some persons have confirmed reservation and others are on the list of RAC and waiting list, then in case of passengers on RAC or waitlisted not

travelling, a certificate has to be obtained from the ticket checking staff to that effect and refund of fare shall be processed online through TDR, indicating the details of the certificate issued by ticket checking staff.

(6)

The online TDR shall be filed upto seventy two hours of actual arrival of the train at passenger's destination and the original certificate issued by the ticket checking staff is to be sent through post to Indian Railway Catering and Tourism Corporation (IRCTC).

(7)

The fare shall be refunded by Indian Railway Catering and Tourism Corporation (IRCTC) to the customer's account after due verification.

(8)

In case of e-tickets (confirmed or RAC), if the reservation charts have been prepared, online TDR is required to be filed for obtaining refund.

(9)

No refund of fare shall be admissible on e-ticket having confirmed reservation in case the request for refund is filed online after two hours of the actual departure of the train.

(10)

No refund of fare shall be admissible on RAC e-tickets in case the request for refund is filed online after three hours of the actual departure of the train.

7B.

Refund on Tatkal tickets - (1) No refund of fare shall be admissible on confirmed Tatkal ticket.

(2)

In case of Tatkal ticket on waitlist, refund of fare shall be granted in accordance with rule 7.

(3)

In case on a party Tatkal ticket or a family tatkal ticket issued for travel for more than one person, some persons have confirmed reservation and others are on waiting list, full refund of fare, less clerkage, shall be admissible for confirmed passengers also provided that the entire tatkal ticket is surrendered for cancellation within six hours before the scheduled departure of the train or upto two hours of the actual departure of the train.]

8.

[Cancellation charges on multiple journey tickets.-

[Substituted by G.S.R. 212(E), dated 1.3.2000]

When an unused ticket involving more than one journey is surrendered for cancellation, the entire ticket shall be treated as one single journey ticket and refund of fare of the entire ticket, irrespective of reservation status of different laps of journeys, shall be granted as per reservation status of first lap of journey, as under :-

(i)

if reservation status of first lap of journey is confirmed, refund shall be granted in accordance with Rule 6; and

(ii)

if reservation status of first lap of journey is RAC or waiting list, refund shall be granted in accordance with Rule 7.

Explanation.- The cancellation charges or clerkage shall be levied only once on the entire amount of ticket and not separately for each lap of journey.]

[Substituted by Notification No. G.S.R. 362(E) dated 6.6.2013 (w.e.f. 24.7.1998)]

[9. Postponement or preponement of journey on a reserved, RAC or waitlisted ticket. - (1) The postponement of journey on confirmed or RAC or waitlisted ticket shall be allowed in the same class and for the same destination or any higher class by the same train or by any other train for any subsequent days, subject to condition that.-

(i)

the ticket is surrendered during the working hours of reservation office and at least forty eight hours before the scheduled departure of the train in which originally booked;

(ii)

the confirmed or RAC or waitlisted accommodation is available in the train in which fresh reservation is required;

(iii)

in case of confirmed ticket, fresh reservation fee for the class for which reservation is required, is paid; and

(iv)

in case of RAC or waitlisted ticket, clerkage charge is paid.

(2)

The preponement of journey on confirmed or RAC or waitlisted ticket shall be allowed in the same class and for the same destination or any higher class by the same train or by any other train for any earlier days, subject to condition that

-

(i)

the ticket is surrendered during the working hours of reservation office and at least forty-eight hours before the scheduled departure of the train in which originally booked;

(ii)

the confirmed or RAC or waitlisted accommodation is available in the train in which fresh reservation is required;

(iii)

in case of confirmed tickets, fresh reservation fee for the class for which reservation is required, is paid; and

(iv)

in case of RAC or waitlisted ticket, clerkage charge is paid.

(3)

In case of difference in fares for originally booked journey and revised journey, the difference of fare shall be refunded or recovered, as the case may be, subject to the provisions of sub rules (1) and (2).

(4)

The postponement or preponement of journey under the sub-rule (1) or sub-rule (2) shall be allowed only once.

(5)

The postponement or preponement of journey on normal train ticket other than Tatkal ticket shall not be applicable against Tatkal Quota even on payment of Tatkal charges.]

10.

Change of journey from lower class to higher class.-

(1)

Change of reservation shall be allowed on a reserved ticket of lower class for higher class on the same train and day or when reserved for a seat in a class for reservation of a berth in the same class on the same train and day, without levying and cancellation charges but on payment of fresh reservation fee for higher class/berth, provided that

(i)

accommodation is available, and

(ii)

the request for change is made

(a)

either during the working hours of reservation office and up to six hours before the scheduled departure of the train; or

(b)

during the course of journey in the train.

(2)

The change referred to under sub-rule (1) shall be allowed only once.

(3)

If the ticket on which change of reservation has been allowed under sub-rule (1) is cancelled, cancellation charge shall be payable as follows, namely :

(a)

cancellation charge as would have been due if the original reservation had been cancelled at the time when the change of reservation was allowed; and

(b)

cancellation charge due in respect of the altered reservation as if the altered reservation is a fresh reservation.

[11. Non-commencement or missing of journey due to late running of trains - (1) No cancellation charge or clerkage shall be levied and full fare shall be refunded to all passengers holding reserved, RAC and waitlisted tickets, if the journey is not undertaken due to late running of the train by more than three hours of the scheduled departure of the train from the station commencing the journey subject to condition that -

(i)

the ticket is surrendered upto the actual departure of the train;

(ii)

in case of e-tickets, the TDR is filed online before the actual departure of the train for availing full refund.

(2)

In case the ticket is cancelled or surrendered or if the request for refund of fare is filed online after the actual departure of the train, no refund of fare shall be admissible.

(3)

Where a passenger holding a ticket, with or without reservation, misses connection for continued journey by another train at any junction station owing to late running of the train by which he had been travelling, the fare for the travelled portion shall be retained and the balance amount of ticket shall be refunded as the fare for untravelled portion, without levying any cancellation charge or clerkage, if he surrenders the ticket for such refund within three hours of the actual arrival of the train by which he had travelled and the refund of fare shall be granted at the junction station.]

12.

Cancellation of tickets where railway administration is unable to provide accommodation.-

Where a railway administration is unable to provide accommodation for any reason whatsoever to passengers holding reserved tickets, no cancellation charge shall be levied and full refund of fare shall be granted to them if such tickets are surrendered for refund within three hours from the actual departure of the train :

Provided that when the train is cancelled due to unforeseen circumstances such as accidents, breaches and floods, the ticket is surrendered within three days excluding the scheduled day of departure of the train.

13.

Partially used tickets.-

(1)

Except as provided in these rules, no refund shall be granted at a station on a ticket on which part of the journey has been undertaken.

(2)

Where a passenger terminated the journey en route, a ticket deposit receipt shall be issued to the ticket holder by the station master of the station in lieu of surrender of the ticket and refund shall be admissible in terms of Rule 21. In such cases, fare for the travelled portion shall be retained and the balance amount of the ticket shall be refundable as the fare for the untravelled journey.

14.

Discontinuation of journey due to dislocation of train services.-

(1)

When a train journey is dislocated en route due to unforeseen circumstances, such as accidents, breaches and floods, full fare for the entire booked journey without any deduction for the travelled portion and without levy of cancellation charge shall be refunded at the station at which the journey is terminated under the following circumstances:

(a)

when the railway is unable to carry the passenger to destination station within a reasonable time by arranging transshipment or diversion or otherwise; or

(b)

when the passenger is involved in a railway accident and/or injured in the accident and does not continue his journey; or

(c)

in the case of death or injury to a passenger in a railway accident, the kith and kin of the passenger have to terminate the journey.

(2)

Where the railway administration offers to carry the passenger to his destination station by any diverted route by arranging transshipment or otherwise, and the passenger is not willing to avail of such an alternative arrangement, fare for travelled portion shall be retained and the balance amount of ticket shall be refunded as the fare for untravelled portion, without levying any cancellation charges, at the station at which the journey has been terminated.

(3)

Where the train journey is dislocated en route due to bandhs, agitations or rail roko, fare for travelled portion shall be retained and the balance amount of ticket shall be refunded as the fare for untravelled portion, without levying any

cancellation charges.

(4)

If the trains, which have separate all-inclusive fare structure on point to point basis, are terminated at a non-scheduled stoppage of the train and the passenger is not willing to avail of the alternative arrangement made by the railway administration to carry the passenger to his destination station, fare for the distance travelled shall be retained based on the per kilometer fare of ticket and the balance amount shall be refunded as the fare for untravelled portion of journey.

15.

Refund of certain fare on failure to provide air-conditioning facility in air-conditioned coaches.-

(1)

Where the air-conditioning facility could not be provided for a portion of journey, refund on tickets issued for air-conditioned coaches shall be granted for such portion on the following basis, namely :

(a)

if the ticket is for air-conditioned first class, the difference between the air-conditioned first class fare and first class fare;

(b)

if the ticket is for air-conditioned sleeper/air-conditioned 3-tier sleeper class, the difference between air-conditioned sleeper/air-conditioned 3-tier sleeper class fare and sleeper class fare (Mail and Express);

(c)

if the ticket is for air-conditioned chair car, the difference between air-conditioned chair car fare and second class fare (Mail and Express);

(d)

if the ticket is for executive class, the difference between the notified executive class fare for the concerned section and the first class fare (Mail and Express) for the concerned distance of that section.

(2)

The refund of difference of fare under sub-rule (1) shall be granted at the destination station on production of the ticket along with a certificate from the conductor or the guard or the travelling ticket examiner of the train giving particulars of the ticket, number of the coach and stations between which the air-conditioning facility was not provided, and is presented within twenty hours of arrival of the train.

16.

When passengers are made to travel in lower class for want of accommodation.-

If the ticket holder of a higher class is made to travel in a lower class for want of accommodation in the class for which the ticket was issued, refund of the difference between the fare paid and the fare payable for the class in which it is actually used shall be granted at the destination station or at the originating station, as the case maybe :

[Provided that refund shall be granted at the destination station on production of a certificate from the conductor or the guard or the travelling ticket examiner of the train certifying that the holder of the ticket had to travel in a lower class for want of accommodation in the class for which it was issued and the ticket, alongwith the above certificate, is presented within two days of the date of issue of the certificate (excluding the date of issue of the certificate).]

[Substituted by Notification No. G.S.R. 453(E) dated 1.8.2006 (w.e.f. 24.7.1998).]

[17. Lost, misplaced, torn or mutilated tickets - (1) No refund of fare in respect of a lost or misplaced ticket shall be granted.

(2)

Refund of fare shall be granted in respect of a torn or mutilated ticket if its genuineness and authenticity are verifiable on the basis of the particulars visible on the face of the ticket.

(3)

If the reservation status of a lost, misplaced, torn or mutilated ticket, at the time of receipt of the application for issuance of a duplicate ticket for the purpose of undertaking journey, is confirmed or RAC and that the duplicate ticket is sought before preparation of reservation chart of the concerned train, the station master shall issue a duplicate ticket in lieu of the original ticket on payment of rupees fifty per passenger in case of second and sleeper class and rupees one hundred per passenger for other classes.

(4)

If a duplicate ticket in lieu of a lost or misplaced reserved ticket is sought after preparation of reservation chart of the concerned train, it shall be issued on payment of a charge equivalent to fifty per cent of the total fare.

(5)

No duplicate ticket shall be issued in respect of RAC tickets after preparation of reservation chart of the concerned train.

(6)

If duplicate ticket in lieu of a torn or mutilated reserved or RAC ticket is sought after preparation of reservation chart of the concerned train, it shall be issued on payment of a charge equivalent to twenty-five per cent of the total fare.

(7)

A duplicate ticket in respect of a party coach ticket or a special train ticket shall be issued upto the time of departure of the train, on payment of a charge equivalent to ten per cent of the total fare.

(8)

No refund of fare shall be granted in respect of charges paid under sub-rules (3), (4), (5) and (6) except in cases where the lost or misplaced ticket is traced after the issuance of a duplicate ticket and presented alongwith the duplicate ticket before departure of the train and in that case charges collected towards the issuance of duplicate ticket shall be refunded after deducting five per cent thereof subject to a minimum deduction of rupees twenty.

(9)

In case the journey is not undertaken, the cancellation charges on the original ticket shall be determined as specified in these rules.

(10)

If the passenger, who has paid excess charges in train on account of his reserved ticket or RAC ticket being lost, misplaced, torn or mutilated, makes an application to a railway administration for grant of refund of the charges paid in train, the Chief Commercial Manager (Refunds) of that railway administration may, after making such inquiry as he may deem necessary, grant refund of fare total charges realised in the train, after retaining the cancellation charges at fifty per cent of a single journey ticket fare per passenger provided that no one has taken refund earlier on the original ticket.]

18.

Wait-listed passengers or concession and privilege ticket order tickets.-

When any person has purchased a ticket on any concessional order or privilege ticket order, and is wait-listed for reservation in any train, he shall be entitled to avail of the same ticket for reservation in any other train on the same date or any other date, without losing the benefit of concessional fare.

19.

Unused portion of return tickets.-

(1)

No refund shall be granted on the unused portion of the concessional return tickets.

(2)

When a return ticket is issued without any concession, it shall be treated like two single journey tickets and the refund shall be granted accordingly.

20.

Refund of fare on unused tickets and freight realised on luggage tickets in respect of luggage booked on the same ticket in case the journey is not undertaken.-

(1)

Refund of freight on luggage shall be granted by the station master as under :

(a)

Luggage is withdrawn at starting station.- Luggage ticket shall be cancelled and freight already collected shall be refunded after recovery of wharfage charges, if any, and deduction of cancellation charge of rupees five per luggage ticket. Journey ticket shall be endorsed to the effect.

(b)

Luggage already despatched from the starting station.- Freight charges on weight admissible as free allowance shall be collected and remarks to this effect endorsed on journey ticket.

(2)

On production of journey ticket on which luggage has been booked, the fare shall be refunded only if bearing the endorsement referred to in sub-rule (1) on the unused ticket after deducting the cancellation charges or clerkage as per rules.

[21. Application for refund of Passenger Reservation System (PRS) tickets in other circumstances -

(1)

For refund of fare under circumstances other than those specified in these rules or under circumstances like `bandh' or agitations or floods, etc., the passengers could not reach the reservation counter or station or current counters for cancellation of tickets, in those cases, a TDR shall be issued to the passenger and the passenger may apply for refund of fare within ten days from the day of commencement of journey to the Chief Commercial Manager (Refunds) of the railway administration under whose jurisdiction the TDR issuing station comes, enclosing the original TDR.

(2)

In the circumstances specified in sub-rule(1), the TDR shall be issued only upto three days after the scheduled departure of the train.]

[Substituted by Notification No. G.S.R. 362(E) dated 6.6.2013 (w.e.f. 24.7.1998)]

[Substituted by Notification No. G.S.R. 362(E) dated 6.6.2013 (w.e.f. 24.7.1998)]

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[Substituted by Notification No. G.S.R. 362(E) dated 6.6.2013 (w.e.f. 24.7.1998)]

[Substituted by Notification No. G.S.R.(E) dated 6.7.2013 (w.e.f. 24.7.1988)]

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